

District-Chattogram.

Md. Monir

.....Accused-petitioner.

-Versus-

The State

.....Opposite-party.

Mr. Mohammad Musa, Advocate

.....For the Accused-petitioner.

Mr. Md. Saiefuddin Khaled, D.A.G with

Mr. Md. Asaduzzaman, A.A.G with

Mrs. Afifa Begum Swapna, A.A.G and

Mr. Sarwar Akhtar Masud, A.A.G,

.....For the State opposite-party.

Present:

Mr. Justice Md. Nazrul Islam Talukder.

And

Mr. Justice Kazi Ebadoth Hossain

29.01.2024.

Heard the learned Advocate for the accused-petitioner and the learned Deputy Attorney-General for the State opposite-party and perused the application along with prosecution materials annexed therewith.

Records need not be called for.

Let a Rule be issued calling upon the opposite-party to show cause as to why the accused-petitioner should not be enlarged on bail in Akbarshah Police Station Case No.19 dated 16.12.2023 corresponding to G.R Case No.377 of 2023 under Section 36(1) Saroni 10(Ka) of the Madok Drobya Niyontron Ain, 2018 now pending before the Court of learned Chief Metropolitan Magistrate, Chattogram and/or pass such other or further order or orders as to this Court may seem fit and proper.

The Rule is made returnable within 4(four) weeks from date.

Subject to disposal of the Rule, let the accused-petitioner namely Md. Monir son of late Abdus Salam and Katiza Begum enlarged on ad-interim bail in the above mentioned case for a period of 6(six) months from date, subject to furnishing adequate bail bond to the satisfaction of the learned Chief Metropolitan Magistrate, Chattogram.

The learned Judge of the Court below shall be at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner.

However, the accused-petitioner shall put in 2(two) sets of requisites within 7 (seven) days, for service of notice of the Rule upon the opposite-party in normal course as well as by registered post with A/D as per HCD Rules.

Office shall not issue any certified copy of this order to the petitioner unless requisites are put in.